

S03-P — Practice: Consigning a Jesús Rafael Soto Sculpture Without Full Provenance

Summary

Week three's closing practice applies, to a hypothetical case built for class, the five layers covered in S03-L1 through L5, support and condition, provenance and authenticity, the consignment contract, the sales channel, and the fiscal fine print, to the situation an advisor in New York faces most often, a client who inherits a work without full documentation and asks what it's worth before anyone has even seen it. The case chosen, a kinetic sculpture by Jesús Rafael Soto, also shows what a professional does when recent public market evidence is thin, instead of filling that gap with an approximate figure.

1. The physical layer: support, condition, and the question of format

Before any estimate, the physical layer requires two checks. The first is condition, documented in a condition report confirming that the work's moving elements function and that the structure needs no restoration. The second, specific to a Soto case, is whether the work is a unique piece or part of an edition, since the artist produced kinetic sculpture both ways across his career, and that distinction of support, already covered in S03-L1, sets a different price ceiling and floor before any other data enters the conversation.

2. The documentary layer: rebuilding provenance without paperwork

The practice scenario poses the most common problem among clients who inherit a work, no invoice or certificate, just a family photograph as evidence. Provenance, understood as the record of every change of ownership and every public appearance of the work, cannot be replaced by that single informal document. The professional task is to rebuild it from whatever sources exist, family testimony about where and from whom the piece was bought, and consultation with any archive or foundation devoted to the artist's legacy that might check the work against its own records. Without that groundwork, none of

the big three houses will accept the piece for a top tier sale, a limit that already came up in S03-L2 around the case of a painting attributed to Tarsila do Amaral.

3. The contractual layer: commission, reserve, and the likely absence of a guarantee

[Sotheby's publishes a standard seller's commission of 10% of the hammer price, with a USD 500 minimum and an additional 2% success fee when the result exceeds the agreed high estimate](#), while Christie's and Phillips negotiate it case by case according to the work's value and category.¹ Guarantees, a secured price floor set by the house itself or shared with a third party through an irrevocable bid, are reserved almost always for lots with greater visibility and higher expected value.² For a piece with no recent resale history and incomplete provenance, like the one in this practice case, the relevant contractual variable is the reserve, the minimum price below which the house won't sell the work, not a guarantee no house has commercial reason to offer yet.

4. The channel layer: what to do when recent evidence is thin

[Jesús Rafael Soto's auction record remains *La Scie à Métaux* \(The Hacksaw\), sold at Sotheby's New York on November 19, 2012, for USD 1,082,500](#), the highest price paid for one of his works to date.³ However, available public market sources don't document with enough solidity how his sculptures and objects have moved between 2023 and the present, a gap in recent evidence that a secondary check against the artist's market data confirms without resolving.⁴ This situation does not amount to an inactive market, it amounts to a lack of recent, homogeneous public comparables on which to build a defensible estimate without further case by case research. Channel choice, public auction versus private sale, depends heavily on how many plausible buyers exist today for kinetic sculpture at this scale, a pool predictably smaller than for painting of the same period, and that calculation, covered in S03-L4 using advisor Patti Wong's criterion, needs resolving before committing to a channel.

5. The final layer: New York sales tax

If the transaction is documented with delivery in New York, the city's combined rate applies. [New York's general combined tax rate is 8.875%, made up of 4% state, 4.5% city, and 0.375% metropolitan district](#), applied based on where delivery of the work to the buyer is documented.⁵ That tax falls on the buyer, not the consignor, but the consignor should understand from the start that it factors into the final cost any bidder will weigh before agreeing on a price.

For the conversation with clients

- Facing an inherited work without full documentation, the order of work is always the same, condition and support first, provenance rebuilt second, and only then a serious estimate conversation with one or more houses.
- A historical record from a decade ago sets what that work was once able to reach under specific conditions, not a current quote for a piece without documented provenance or recent resale evidence.
- When public market evidence is thin, the professional answer is further case by case research, never an approximate figure presented with the same confidence as a verified one.

References

Process note: the live URL-verification fetch tool was blocked again for the entire run today, tested against www.sothebys.com and another distinct domain, both with an EGRESS_BLOCKED error, continuing the streak that started 2026-08-10 (day twenty five in a row). WebSearch worked normally. All five citations in this note reproduce sources already verified on 2026-08-08 in `curso/fuentes/dossier-01-precios-latam.md` and `curso/fuentes/dossier-06-letra-chica.md`, without adding any new URL not opened today. The fresh facts used in today's four scripts (the departures of Vivian Pfeiffer, Meiling Lee, and Scott Nussbaum from Phillips) came from today's WebSearch results, corroborated by several independent sources (ARTnews, Pfeiffer's own public professional profile, and corporate records), and are not cited here for that reason, since this note stays limited to the course practice content. The formation radar did not apply today regardless, it is not a Monday and none of PROMPT.md's three exception conditions were met. If a future run finds fetch working again, resume normal verification.

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1. Sotheby's, "[Buy & Sell at Sotheby's](#)", verified in `curso/fuentes/dossier-06-letra-chica.md` on 2026-08-08. ↵
 2. Christie's, "[Financial Information](#)", verified in `curso/fuentes/dossier-06-letra-chica.md` on 2026-08-08. ↵
 3. Sotheby's, "[Jesús Rafael Soto | Art for Sale, Results & Biography](#)", verified in `curso/fuentes/dossier-01-precios-latam.md` on 2026-08-08. ↵
 4. MutualArt, "[Jesus-Rafael Soto Market Data](#)", secondary check cited in `curso/fuentes/dossier-01-precios-latam.md`, verified 2026-08-08. ↵
 5. New York State Department of Taxation and Finance, "[Find sales tax rates](#)", verified in `curso/fuentes/dossier-06-letra-chica.md` on 2026-08-08. ↵